

hearing,” the judgment creditor “shall” serve the judgment debtor with a copy of the order to show cause, the application, and the Judicial Council notice of hearing. (CCP §704.770(b)(1).) The judgment creditor must also personally serve those documents on an occupant of the dwelling or, if no occupant is present, post the documents conspicuously at the dwelling. (CCP §704.770(b)(2).)

Before this court can rule on the application for sale of dwelling it must first set an OSC re: Sale of Dwelling, which must be properly served pursuant to CCP section 704.770 (b)(2). Accordingly, the court issues the OSC and sets a hearing on September 29, 2026 at 8:30 am in Dept. 3 so that the OSC may be served 30 days prior to the hearing. In light of the past issues with Defendant evading service, counsel for Defendant is expected to agree to accept service on behalf of Defendant.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601772	TOLBERT VS RISE ENERGY, LLC	DEMURRER ON COMPLAINT FOR WRONGFUL TERMINATION (OVER \$35,000) OF OMARI TOLBERT BY NUSUN POWER, LLC, ANTONIO RUSSO

Tentative Ruling:

The Demurrer in this matter is unopposed. The Court takes judicial notice as requested by the moving party. The court sustains without leave to amend as requested in the demurrer. The moving Defendants are to file an answer to the remaining 7th and 8th causes of action within 10 days .